

Chandra Pal v. Dakshinachal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 23 July 2019 · WRIT - C No. 22823 of 2019 · **Writ disposed with liberty to complain to CGRF under clause 7.10.**

HEADNOTE

After the Executive Engineer has considered and decided a billing-correctness grievance under clause 6.5 of the U.P. Electricity Supply Code, 2005, a consumer who remains dissatisfied may complain to the Consumer Grievance Redressal Forum under clause 7.10 read with the UPERC (Consumer Grievance Redressal Forum and Electricity Ombudsman) Regulations, 2007. The High Court will not re-examine the bill on a second writ. The Forum is to decide the complaint on merits, without limitation technicalities, and expeditiously.

FACTUAL SUMMARY

Chandra Pal challenged electricity bills dated 20 August 2008/18 March 2013 and a demand notice of 18 February 2014. An earlier writ was disposed on 14 May 2014 directing a clause 6.5 decision under the U.P. Electricity Supply Code, 2005. The Executive Engineer on 4 August 2014 rejected the grievance, held the bills correct, and required deposit of Rs 4,54,271. In this second writ he contended that the Executive Engineer was not the competent authority and that the bill itself required the Consumer Grievance Redressal Forum to decide.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF complaint after clause 6.5 Executive Engineer decision on bill correctness

HOLDING

Where the Executive Engineer has already considered and decided the correctness of the electricity bill (here under a prior clause 6.5 direction), a consumer who is not satisfied with that order may complain to the Consumer Grievance Redressal Forum under clause 7.10 of the Supply Code, 2005 read with the UPERC (CGRF and Electricity Ombudsman) Regulations, 2007. The writ court will not itself examine the bill. If such a complaint is made within two weeks, the Forum shall consider it on merits without technicalities of limitation and most expeditiously. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER, RATHER THAN THE CONSUMER GRIEVANCE REDRESSAL FORUM, WAS THE COMPETENT AUTHORITY TO DECIDE THE ORIGINAL BILLING GRIEVANCE.

The Court recorded the objection ('As it may be') but proceeded on the footing that the Executive Engineer had already decided bill correctness. ¶ 1

NOT DECIDED — MERITS OF THE BILLS DATED 20.8.2008/18.3.2013, THE DEMAND OF 18.2.2014, AND THE EXECUTIVE ENGINEER'S ORDER DATED 4.8.2014 REQUIRING DEPOSIT OF RS 4,54,271.

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